This regulation effective August 22, 1951.

[SEAL] O. W. CLARK,
Deputy Administrator.

[F. R. Doc. 51-9927; Filed, Aug. 20, 1951; 8:47 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 743]

ALASKA

TRANSFERRING CERTAIN LAND RESERVED BY EXECUTIVE ORDER NO. 8305 OF DECEMBER 19, 1939, FOR THE USE OF THE WAR DEPARTMENT FOR MILITARY PURPOSES TO THE DEPARTMENT OF AGRICULTURE FOR USE FOR BUILDING PURPOSES

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The following-described tract of public land, reserved for the use of the War Department for military purposes by Executive Order No. 8305 of December 19, 1939, is hereby transferred to the Department of Agriculture, for the use of the Soil Conservation Service for building purposes:

All that portion of Government lot 2, sec. 5, T. 1 S., R. 1 W., Fairbanks Meridian, Alaska, described as follows:

Beginning at the southeast corner of said Government lot 2; thence west along the southerly line of said lot 2, 530 feet, more or less, to the southerly line of College Road; thence northeasterly along the southerly line of said College Road 610 feet, more or less, to the east line of said Government lot 2; thence South along the east line of said Government lot 2, 310 feet, more or less, to the point of beginning, containing 1.90 acres, more or less.

The said Executive Order No. 8305 of December 19, 1939, is amended accordingly.

R. D. SEARLES,
Secretary of the Interior.

AUGUST 16, 1951.

[F. R. Doc. 51-9968; Filed, Aug. 21, 1951; 8:45 a. m.]

[Public Land Order 744]

IDAHO

REVOKING EXECUTIVE ORDER NO. 5482 OF NOVEMBER 14, 1930

By virtue of the authority vested in the President by the act of June 25, 1910, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 5482 of November 14, 1930, withdrawing the following-described land in Idaho pending legislation is hereby revoked:

BOISE MERIDIAN

T. 1 N., R. 23 E.,
Sec. 2, NW¼NW¼;
Sec. 3, NW¼NE¼, NW¼SW¼, SE¼SW¼, and SE¼;
Sec. 9, NE¼NW¼;
Sec. 10, W½NE¼ and NW¼.
T. 2 N., R. 23 E.,
Sec. 26, S½SW¼, W½SE¼, and SE¼SE¼;
Sec. 35, NE¼, E½NW¼, N½SW¼, SW¼SW¼, NE¼SE¼, and S½SE¼.

The areas described, including both public and non-public lands, aggregate 1280 acres.

The land is primarily grazing in character.

No applications for these lands may be allowed under the homestead, small-tract, or desert-land laws, or any other non-mineral public-land laws unless the land in question has already been classified as valuable or suitable for such types of application or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m., on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m., on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m., on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m., on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m., on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Land and Survey Office, Boise, Idaho, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Land and Survey Office, Boise, Idaho.

R. D. SEARLES,
Acting Secretary of the Interior.

AUGUST 16, 1951.

[F. R. Doc. 51-9969; Filed, Aug. 21, 1951; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

EXTENSION OF TEMPORARY ALLOCATION OF FREQUENCIES

In the matter of a petition filed with the Commission by the Seismograph Service Corporation of Tulsa, Oklahoma, requesting extension of temporary allocation of frequencies to the radiolocation service in the band 1750–1800 kc.

At a meeting of the Federal Communications Commission held at its offices in Washington, D. C., on the 15th day of August 1951;

The Commission having under consideration Footnote (2) to § 2.104 (a) of its rules which, subject to certain conditions, temporarily allocates the band 1750–1800 kc. until not later than August 17, 1951, to a radiolocation service for

the location of petroleum deposits in the Gulf of Mexico, and having under consideration a petition filed by the Seismograph Service Corporation requesting an extension of this temporary allocation for an additional period after August 17, 1951, on the general grounds that such extension is needed pending a decision in the proceedings in the Commission's general radiolocation hearing in Docket 9233 and on the further grounds that the petitioner has filed applications for renewal of its existing Class 2 Experimental licenses authorizing the use of this band for certain radiolocation purposes; and

It appearing, that on June 4 and 5, 1951, the Commission heard testimony and received evidence in the proceedings of Docket 9233, and, pending final determination in the matter of Docket 9233, a further extension of the temporary allocation would permit continuation of the current radiolocation operations in the band 1750–1800 kc.; and

It further appearing, that the Commission has heretofore found that establishment on a temporary basis of a radiolocation system as described above would be in the public interest and a further temporary extension as herein ordered would continue to be in the public interest; and

It further appearing, that on February 21, 1951, the Commission adopted the Disaster Services Rules (Part 20, effective March 21, 1951), making frequencies in the band 1750–1800 kc. available to stations in that service on a non-exclusive basis and that such service should be free from harmful interference such as might be caused by the operation of a radiolocation service in this band; and

It further appearing, that the legal authority for a temporary extension of the existing temporary allocation of the band 1750–1800 kc. is vested in the Commission under sections 4 (i), and 303 (a), (b), (c), (d), (f), (g), (h), and (r) of the Communications Act of 1934, as amended; Article 7 of the Cairo (1938) General Radio Regulations, and Article 3 of the Atlantic City (1947) Radio Regulations;

It is ordered, That the petition of the Seismograph Service Corporation is granted to the extent that the temporary allocation is extended in accordance with the terms hereinafter set forth.

It is further ordered, That footnote (2) to § 2.104 (a) of the Commission's rules governing frequency allocations and other matters is amended to read as follows:

[2] On the condition that harmful interference shall not be caused to the Disaster Communications Service in this band, this band is temporarily allocated to the radiolocation service until not later than February 17, 1952, subject to possible temporary continuance beyond that time for such additional period or periods as the Commission may find necessary: *Provided, however*, That this temporary allocation, or any temporary continuation thereof, shall be subject to the use-in-derogation provisions of Article 7 of the Cairo General Radio regulations and Chapter III of the Atlantic City Radio regulations: *And provided further*, That this temporary allocation, or any temporary continuation thereof, shall automatically terminate, without the necessity of any further action by the Commission, not later than the date on which that part of the Table of Frequency Allocations of the Inter-American Radio Agreement (Washington, 1949) covering the band 1750–1800 kc. becomes effective, or the date on which that part of the Atlantic City Table of Frequency Allocations covering all of the bands below 27,500 kc. becomes effective (as provided by Article 47 of the Atlantic City Radio regulations), whichever date is earlier: *And provided still further*, That this temporary allocation, or any temporary continuation thereof, shall be subject to earlier cancellation or modification by the Commission, without the necessity of a hearing, if during any period when such allocation is in effect the Commission shall, in the course of any action by the United States Government directed toward bringing into force any part of the Inter-American Radio Agreement (Washington, 1949) or toward making effective all or any portion of that part of the Atlantic City Table of Frequency Allocations covering the bands below 27,500 kc. or in the course of proceedings undertaken by the Commission to determine whether a radiolocation service should be provided on a permanent basis, reach conclusions which, in the opinion of the Commission, require such cancellation or modification. This temporary allocation, or any temporary continuation thereof, is strictly limited to a radiolocation service for the location of petroleum deposits in the Gulf of Mexico. Stations in this service shall be located within 150 miles of the shoreline of the Gulf of Mexico.

It is further ordered, That this order, and the amendment of Part 2 of the rules herein ordered, shall be effective August 17, 1951.

(Sec. 4, 48 Stat. 1066 as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: August 15, 1951.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] WM. P. MASSING,
Acting Secretary.

[F. R. Doc. 51–10027; Filed, Aug. 21, 1951; 8:53 a. m.]

[Docket No. 9990]

PART 9—AERONAUTICAL SERVICES

CERTAIN FREQUENCIES FOR USE BY AIRCRAFT AND AIRDROME CONTROL STATIONS

In the matter of amendment of §§ 9.312 (h), 9.321 (b), and 9.411 (a) of Part 9, the Commission's rules and regulations governing aeronautical services in order to provide certain frequencies within the band 118.1–126.7 Mc for use by aircraft and airdrome control stations.

At the session of the Federal Communications Commission held in its offices in Washington, D. C., on the 15th day of August 1951;

The Commission having under consideration the above captioned matter which proposed to amend Part 9, the Commission's rules and regulations governing aeronautical services, in order to make available additional frequencies for assignment to airdrome control stations and to aircraft for air traffic control operations; and

It appearing, that in accordance with the requirements of the Administrative Procedure Act, a notice of proposed rule making was duly published in the FEDERAL REGISTER on June 12, 1951, which notice proposed the above amendment to the Commission's rules; and

It further appearing, that the period in which interested persons were afforded an opportunity to submit comments having expired, all comments were considered, and no objections to the proposal were received; and

It further appearing, that the public interest, convenience and necessity will be served by this amendment, the authority for which is contained in sections 4 (i), 303 (b), (c), (d), and (r) of the Communications Act of 1934, as amended;

It is ordered, That effective October 1, 1951, Part 9, the Commission's rules and regulations governing aeronautical services, is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: August 16, 1951.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] WM. P. MASSING,
Acting Secretary.

1. Amend § 9.312 (h) to read as follows:

(h)

118.1 A	119.9	123.7	125.5
118.3	120.1	123.9	125.7
118.5	120.3 B	124.1	125.9
118.7	120.5	124.3	126.1 E
118.9	120.7	124.5	126.3 E
119.1	120.9	124.7	126.5
119.3	121.1	124.9	126.7 F
119.5	121.3 C	125.1	
119.7	121.7 D	125.3	

These frequencies are available for air traffic control operations

A Primarily for international operations.

B Primarily for communications with Air Route Traffic Control Centers.

C For communication with low activity airdrome control stations.

D Available on a secondary basis to its primary use as an airport utility frequency.

E Available on a non-interference basis to government use of 126.18 Mc.

F For communication with Interstate Airway Communication Stations.

2. Delete footnote 3A on § 9.312 (h) and footnote 4 on § 9.321 (b).

3. Amend § 9.411 (a) to read as follows:

(a)[5]

118.1 A	119.7	121.3 C	124.9
118.3	119.9	121.7 D	125.1
118.5	120.1	123.7	125.3
118.7	120.3 B	123.9	125.5
118.9	120.5	124.1	125.7
119.1	120.7	124.3	125.9
119.3	120.9	124.5	126.1 E
119.5	121.1	124.7	126.3 E

A Primarily for international operations.

B Primarily for assignment to Air Route Traffic Control Centers.

C For assignment to low activity airdrome control stations only.

D Available on a secondary basis to its primary use as an airport utility frequency.

E Available on a non-interference basis to government use of 126.18 Mc.

[F. R. Doc. 51–10028; Filed, Aug. 21, 1951; 8:53 a. m.]